

Warranties vs. Contracts:

It should be noted that warranties are different from contracts. Warranties, unlike contracts, do not impose binding obligations on the buyer. (See *Weinstat v. Dentsply Int'l, Inc.* (2010) 180 Cal.App.4th 1213, 1228-1229.) "A warranty relates to the title, character, quality, identity, or condition of the goods. The purpose of the law of warranty is to determine what it is that the seller has in essence agreed to sell." (*Keith v. Buchanan* (1985) 173 Cal.App.3d 13, 20.) Based on those warranties, the seller is bound to deliver and the buyer to accept goods that match the warranties made. (Ibid.) Written warranties are merely a written statement of promises made to the consumer prior to a purchase, which constitute a declaration of the facts presented or promises made to the consumer in connection with the sale of a good. (Civ. Code, §§ 1791.2, 1790.3; 15 U.S.C. § 2301(6).) While the seller may be held to the promises/warranties it made to a consumer prior to the sale of a vehicle, the written warranties do not constitute a contract between the manufacturer and the buyer. Rather, it is the retail installment sales contract that evidences the transaction.

Defendant's Request for Judicial Notice GRANTED.

Plaintiff's Evidentiary Objection #1 SUSTAINED.

Motion to Compel Binding Arbitration DENIED.

Case Management Conference confirmed for 10.21.26.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2604533	KALMANEK VS CENTURY 21 REAL ESTATE LLC, A DELAWARE LIMITED LIABILITY	HEARING ON PETITION TO PERPETUATE TESTIMONY AND COMPLE PRE-FILING DISCOVERY

Tentative Ruling: No tentative ruling. Case was dismissed on 7.17.26.